

HEADNOTE

“A defendant company in China or Hong Kong cannot be served a Statement of claim by email to a person who is not authorised to accept service. Neither can such service be made by public service in the form of a written notice to be displayed in the publicly accessible premises of a UPC Local Division at this stage. Attempts to serve in China by any method provided for by the Hague Convention pursuant to R.274.1(a)(ii) RoP shall normally be made before service by other means (R.274.1(b) RoP) or by alternative methods or at an alternative place (R.275 RoP) is permitted.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP 2 645 714

Video decoding device, video decoding method, and program

KEYWORDS

Service

Regulation (EU) 2020/1784

the Hague Convention

Service outside the Contracting Member St...

Rule 274 Service outside the Contracting Member States

SUMMARY

The Court of Appeal in Luxembourg ruled on an infringement action. The patent at issue relates to a video decoding device, video decoding method, and program. According to the headnotes of the decision, a defendant company in China or Hong Kong cannot be served by email to an unauthorised person. Service by public notice displayed at a UPC Local Division is also impermissible at this stage. In particular, attempts to serve defendants in China must normally follow the Hague Convention methods first. Only after such attempts may the court consider alternative service methods or locations under the Rules of Procedure.